

FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent and
Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE. LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: May 14, 2025

NOTICE OF FILING OF THIRD-PARTY COMPLAINT

Notice is given that a third-party complaint has been filed with the Federal Maritime Commission (the “Commission”) by COSCO Shipping Lines Co., Ltd. (the “Third-Party Complainant”) against Samsung Electronics Company, Ltd.; Samsung SDS Global SCL Asia Pacific Pte. Ltd.; and Samsung Electronics Logitech Company, Limited (the “Third-Party Respondents”). Complainant states that the Commission has jurisdiction over this complaint pursuant to the Shipping Act, 46 U.S.C. 40101, *et seq.*—including 46 U.S.C. 41102(a) and 41301—and personal jurisdiction over Third-Party Respondents as “person[s]” as the term is used in 46 U.S.C. 41102(a).

Third-Party Complainant is a corporation organized and existing under the laws of the People’s Republic of China with a principal place of business located in Shanghai, China.

Third-Party Complainant identifies Third-Party Respondent Samsung Electronics Company, Ltd. as a corporation organized and existing under the laws of the Republic of Korea with a principal place of business located in Seoul, Republic of Korea.

Third-Party Complainant identifies Third-Party Respondent Samsung SDS Global SCL Asia Pacific Pte. Ltd. as a corporation organized and existing under the laws of the Republic of Singapore with a principal place of business located in Singapore.

Third-Party Complainant identifies Third-Party Respondent Samsung Electronics Logitech Company, Limited as a corporation organized and existing under the laws of the Republic of Korea with a principal place of business in Suwon, Republic of Korea.

Third-Party Complainant alleges that Third-Party Respondents violated 46 U.S.C. 41102(a). Third-Party Complainant alleges this violation arose due to Third-Party Respondents entering into service contracts that they knew would obligate them to bear certain charges associated with store door deliveries while concealing their disagreement with the terms set forth, demanding refunds for and waivers of these charges, and other acts or omissions.

An answer to the third-party complaint must be filed with the Commission within 25 days after the date of service.

The full text of the third-party complaint can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/24-16/>. The initial decision of the presiding judge shall be issued by September 29, 2025, and the final decision of the Commission shall be issued by April 14, 2026.

David Eng
Secretary